

Digital Records Retention Act 2025

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An Act to make provision about the retention, security and lawful disposal of digital records held by public authorities in the United Kingdom; to establish duties of the Information Retention Commissioner; and for connected purposes.

[Royal Assent, 14th March 2025]

BE IT ENACTED by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:-

Section 1: Interpretation

(1) In this Act -- "public authority" has the meaning given by section 3 of the Freedom of Information Act 2000; "digital record" means any information stored in electronic form by a public authority in the course of its functions; "the Commissioner" means the Information Retention Commissioner appointed under section 4.

(2) References in this Act to "unlawful disposal" are references to the deletion, destruction or alteration of a digital record otherwise than in accordance with a retention schedule approved under section 2.

Section 2: Retention Schedules

(1) Every public authority must, within twelve months of the coming into force of this section, prepare and publish a retention schedule setting out the minimum period for which each category of digital record must be retained.

(2) A retention schedule must be reviewed at intervals of not more than three years and, where necessary, revised.

(3) The Secretary of State may by regulations made under section 8 prescribe minimum retention periods for specified categories of digital record, and any retention schedule under this section must not specify a period shorter than that prescribed.

Section 3: Security of Digital Records

(1) A public authority must take such technical and organisational measures as are reasonable in the circumstances to protect digital records against unauthorised access, loss, or unlawful disposal.

(2) Where a public authority becomes aware of a breach of the duty in subsection (1) affecting a significant volume of digital records, it must notify the Commissioner without undue delay and, in any event, within 72 hours of becoming so aware.

Section 4: The Information Retention Commissioner

- (1) There is to be an officer known as the Information Retention Commissioner.
- (2) The Commissioner is appointed by His Majesty on the recommendation of the Secretary of State.
- (3) The functions of the Commissioner include -- (a) monitoring compliance with this Act by public authorities; (b) issuing guidance on retention schedules and record security; (c) investigating complaints of unlawful disposal; and (d) reporting annually to Parliament.

Section 5: Enforcement Notices

- (1) Where the Commissioner is satisfied that a public authority has failed to comply with a duty under section 2 or section 3, the Commissioner may serve an enforcement notice on that authority.
- (2) An enforcement notice must specify the failure identified and the steps required to remedy it, and may specify a period within which those steps must be taken, being not less than 28 days.
- (3) A public authority that fails to comply with an enforcement notice without reasonable excuse is liable, on application by the Commissioner to the appropriate tribunal, to a civil penalty not exceeding the amount prescribed under section 8.

Section 6: Rights of Appeal

- (1) A public authority served with an enforcement notice under section 5 may appeal to the appropriate tribunal within 28 days of service.
- (2) On an appeal under this section, the tribunal may confirm, vary, or cancel the enforcement notice.

Section 7: Offences

- (1) A person who knowingly causes the unlawful disposal of a digital record with intent to prevent its disclosure commits an offence.
- (2) A person guilty of an offence under this section is liable -- (a) on summary conviction, to a fine not exceeding the statutory maximum; (b) on conviction on indictment, to imprisonment for a term not exceeding two years, to a fine, or to both.

Section 8: Regulations

- (1) The Secretary of State may make regulations for the purposes of this Act.
- (2) Regulations under this section are to be made by statutory instrument, and a statutory instrument containing such regulations is subject to annulment in pursuance of a resolution of either House of Parliament.

Section 9: Extent, Commencement and Short Title

- (1) This Act extends to England and Wales, Scotland and Northern Ireland.
- (2) This Act comes into force on such day as the Secretary of State may by regulations appoint.

(3) This Act may be cited as the Digital Records Retention Act 2025.

SCHEDULE 1

Minimum Retention Periods

Section 2

1. Financial records relating to public expenditure: not less than 7 years.
2. Records relating to employment matters: not less than 6 years after the end of employment.
3. Records relating to litigation or potential litigation: not less than 6 years after the conclusion of proceedings or, if no proceedings are brought, 6 years from the event giving rise to the potential claim.
4. Records classified as being of permanent historical value: to be transferred to the National Archives in accordance with the Public Records Act 1958 and retained permanently.
5. All other digital records not falling within paragraphs 1 to 4: not less than 3 years, unless a shorter period is approved by the Commissioner under section 2(3).